

Court No. - 3

Case :- WRIT - C No. - 64632 of 2011

Petitioner :- Kaushal Kishore

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- K.K. Chaturvedi

Respondent Counsel :- C.S.C.,Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Vinay Kumar Mathur,J.

Heard Mr.K.K.Chaturvedi, learned counsel appearing for petitioner and Sri Subhash Gosai, Advocate holding brief of Mr. Rajesh Tripathi, counsel for respondents.

Petitioner has a grievance against the Executive Engineer for not giving the tubewell connection under Sukh Rahat Package. Though the dispute was with regard to reduction of load which according to the authority concerned is covered by Sub-Clause f (ii) under Clause 4.41 of the Uttar Pradesh Electricity Supply Code, 2005.

In any event, the dispute cannot be resolved hereunder and since the grievance is against the Executive Engineer, we disposed of the writ petition upon giving direction to petitioner to make an application to the Superintending Engineer for the purposes of consideration of the cause as early as possible within a period of one month from the date of making the application. In any event, petitioner will make such application within seven days from the date of obtaining certified copy of the order.

With these observations, the writ petition is disposed of on contest, at the stage of admission, however, without imposing any cost.

Order Date :- 14.11.2011

SKD